



Targeted zoning reforms are the right response to data centers

Published 6:00 am Sunday, July 19, 2026



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In early June 2026, the Bowling Green City Commission faced intense public debate over proposed data centers. After careful deliberation, commissioners voted down a six-month moratorium on data center applications while unanimously advancing amendments to the zoning ordinance.

This decision was not a dismissal of legitimate community concerns over power, water, noise, and environmental impacts. Rather, it reflected a commitment to lawful, effective, and collaborative governance under Kentucky law. A moratorium targeting one industry would have been both unenforceable and legally vulnerable, while the zoning changes provide durable protections without overstepping authority.

First, an industry-specific moratorium would likely have been improper and unenforceable under Kentucky planning and zoning statutes. Kentucky law emphasizes uniform application of land-use regulations. Singling out data centers for a temporary ban risks claims of arbitrary or discriminatory treatment — effectively a de facto prohibition on a legitimate commercial use without comprehensive planning justification.

Courts routinely scrutinize such measures for violating equal protection principles or exceeding local authority. Moreover, the sponsors' push for the moratorium appeared to be political grandstanding — designed more for public optics and short-term applause than for creating lasting, defensible policy. A blanket pause also invites legal challenges, delays, and potential lawsuits from developers, wasting public resources that could be better directed toward balanced regulation. By rejecting the moratorium, the Commission avoided these pitfalls and upheld the rule of law.

Second, the City of Bowling Green cannot act unilaterally on zoning matters. The City-County Planning Commission serves six governmental entities: Bowling Green and five other jurisdictions in Warren County. Zoning authority is shared, and a city-only moratorium would have created fragmented, inconsistent policy across the planning jurisdiction. This could undermine the cooperative framework that governs land use in the region.

Acting alone would have been improper and practically ineffective, as development could simply shift to adjacent unincorporated areas under county oversight. The Commission rightly recognized that meaningful action required coordination with the broader fiscal court and planning body.

Instead of a reactive pause, the Commission approved targeted zoning amendments on first reading. These changes establish data centers as a distinct use category with robust standards: Formal Bonding for environmental impact, 1,500-foot buffers from residential and sensitive uses, mandatory closed-loop cooling systems to protect water resources, full developer funding of utility impacts, and enhanced review processes.

These reforms directly address citizen concerns about resource strain and quality of life within the existing industrial zoning framework. They firmly discourage poorly sited or high-impact proposals by making them cost prohibitive.

Critics may argue this approach is cautious. However, a moratorium would have offered only illusory protection: temporary, legally fragile, and jurisdictionally incomplete. The zoning reforms deliver permanent, defensible safeguards rooted in comprehensive planning. They reflect mature governance — listening to constituents, respecting statutory limits, and collaborating across entities — rather than engaging in performative politics.